



**ARIZONA HOUSE OF REPRESENTATIVES
FLOOR AMENDMENT EXPLANATION**
57th Legislature, 2nd Regular Session
Majority Research Staff

[HB 2144](#): child support; preborn children

DIAZ FLOOR AMENDMENT

1. Permits a mother to choose to undergo genetic testing either during the pregnancy or after the birth of the child, if ordered by the court in any marital or domestic relations proceeding.

ADDITIONAL COW
DIAZ FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2144
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 25-320, Arizona Revised Statutes, is amended to
3 read:

4 25-320. Child support; factors; guidelines; methods of
5 payment; additional enforcement provisions;
6 definitions

7 A. In a proceeding for dissolution of marriage, legal separation,
8 maintenance or child support, the court may order either or both parents
9 owing a duty of support to a child, ~~WHO~~ **IS** born to or adopted by the
10 parents, ~~to~~ pay an amount reasonable and necessary for support of the
11 child, without regard to marital misconduct.

12 B. If child support has not been ordered by a child support order
13 and if the court deems child support appropriate, the court shall direct,
14 using a retroactive application of the child support guidelines to the
15 date of filing a dissolution of marriage, legal separation, maintenance or
16 child support proceeding **OR THE DATE OF A POSITIVE PREGNANCY TEST THAT IS**
17 **CONFIRMED BY A LICENSED HEALTH CARE PROFESSIONAL, WHICHEVER FIRST OCCURS,**
18 the amount that the parents shall pay for the past support of the child
19 and the manner in which payment shall be paid, taking into account any
20 amount of temporary or voluntary support that has been paid. Retroactive
21 child support is enforceable in any manner provided by law.

22 C. If the parties lived apart before the date of the filing for
23 dissolution of marriage, legal separation, maintenance or child support
24 and if child support has not been ordered by a child support order, the
25 court may order child support retroactively to the date of separation, but
26 not more than three years before the date of the filing for dissolution of
27 marriage, legal separation, maintenance or child support. The court must
28 first consider all relevant circumstances, including the conduct or

1 motivation of the parties in that filing and the diligence with which
2 service of process was attempted on the obligor spouse or was frustrated
3 by the obligor spouse. If the court determines that child support is
4 appropriate, the court shall direct, using a retroactive application of
5 the child support guidelines, the amount that the parents must pay for the
6 past support of the child and the manner in which payments must be paid,
7 taking into account any amount of temporary or voluntary support that has
8 been paid.

9 D. The supreme court shall establish guidelines for determining the
10 amount of child support. The amount resulting from the application of
11 these guidelines is the amount of child support ordered unless a written
12 finding is made, based on criteria approved by the supreme court, that
13 application of the guidelines would be inappropriate or unjust in a
14 particular case. The supreme court shall review the guidelines at least
15 once every four years to ensure that their application results in the
16 determination of appropriate child support amounts. The supreme court
17 shall base the guidelines and criteria for deviation from them on all
18 relevant factors, considered together and weighed in conjunction with each
19 other, including:

- 20 1. The financial resources and needs of the child.
- 21 2. The financial resources and needs of the custodial parent.
- 22 3. The standard of living the child would have enjoyed if the child
23 lived in an intact home with both parents to the extent it is economically
24 feasible considering the resources of each parent and each parent's need
25 to maintain a home and to provide support for the child when the child is
26 with that parent.
- 27 4. The physical and emotional condition of the child, ~~and~~ and the
28 child's educational needs.
- 29 5. The financial resources and needs of the noncustodial parent.
- 30 6. The medical support plan for the child. The plan should include
31 the child's medical support needs, the availability of medical insurance
32 or services provided by the Arizona health care cost containment system
33 and whether a cash medical support order is necessary.
- 34 7. Excessive or abnormal expenditures, destruction, concealment or
35 fraudulent disposition of community, joint tenancy and other property held
36 in common.
- 37 8. The duration of parenting time and related expenses.

38 9. THE DIRECT MEDICAL AND PREGNANCY-RELATED EXPENSES OF THE MOTHER
39 IF THE CHILD IS A PREBORN CHILD.

40 E. Even if a child is over the age of majority when a petition is
41 filed or at the time of the final decree, the court may order support to
42 continue past the age of majority if all of the following are true:

- 43 1. The court has considered the factors prescribed in subsection D
44 of this section.
- 45 2. The child has severe mental or physical disabilities as
46 demonstrated by the fact that the child is unable to live independently
47 and be self-supporting.

1 3. The child's disability began before the child reached the age of
2 majority.

3 F. If a child reaches the age of majority while the child is
4 attending high school or a certified high school equivalency program,
5 support shall continue to be provided during the period in which the child
6 is actually attending high school or the equivalency program but only
7 until the child reaches nineteen years of age unless the court enters an
8 order pursuant to subsection E of this section. Notwithstanding any other
9 law, a parent paying support for a child over the age of majority pursuant
10 to this section is entitled to obtain all records related to the
11 attendance of the child in the high school or equivalency program.

12 G. If a personal check for support payments and handling fees is
13 rightfully dishonored by the payor bank or other drawee, the person
14 obligated to pay support shall make any subsequent support payments and
15 handling fees only by cash, money order, cashier's check, traveler's check
16 or certified check. If a person WHO IS required to pay support other than
17 by personal check demonstrates full and timely payment for twenty-four
18 consecutive months, that person may pay support by personal check if these
19 payments are for the full amount, are timely tendered and are not
20 rightfully dishonored by the payor bank or other drawee.

21 H. Subsection G of this section does not apply to payments made by
22 means of an assignment.

23 I. If after reasonable efforts to locate the obligee the clerk or
24 support payment clearinghouse is unable to deliver payments for the period
25 prescribed in section 25-503 due to the failure of the person to whom the
26 support has been ordered to be paid to notify the clerk or support payment
27 clearinghouse of a change in address, the clerk or support payment
28 clearinghouse shall not deliver further payments and shall return the
29 payments to the obligor consistent with the requirements of section
30 25-503.

31 J. An order for child support shall assign responsibility for
32 providing medical insurance for the child who is the subject of the
33 support order to one of the parents and shall assign responsibility for
34 the payment of any medical costs of the child that are not covered by
35 insurance according to the child support guidelines. Each parent shall
36 provide information to the court regarding the availability of medical
37 insurance for the child that is accessible and available at a reasonable
38 cost. In title IV-D cases, the parent responsible pursuant to court order
39 for providing medical insurance for the child shall notify the child
40 support enforcement agency in the department of economic security if
41 medical insurance has been obtained or if the child is no longer covered
42 under an insurance plan.

43 K. If the court finds that neither parent has the ability to obtain
44 medical insurance for the child that is accessible and available at a
45 reasonable cost, the court shall:

46 1. In a title IV-D case, in accordance with established title IV-D
47 criteria, establish a reasonable monthly cash medical support order to be

1 paid by the obligor. If medical assistance is being provided to a child
2 under title XIX of the social security act, cash medical support is
3 assigned to the state pursuant to section 46-407. On verification that
4 the obligor has obtained private insurance, the cash medical support order
5 terminates by operation of law on the first day of the month after the
6 policy's effective date or on the date the court, or the department in a
7 title IV-D case, is notified that insurance has been obtained, whichever
8 is later. If the private insurance terminates, the cash medical support
9 order automatically resumes by operation of law on the first day of the
10 month following the termination date of the policy.

11 2. Order one parent to provide medical insurance when it becomes
12 accessible and available at a reasonable cost.

13 3. Order that medical costs in excess of the cash medical support
14 amount shall be paid by each parent according to the percentage assigned
15 for payment of uninsured costs.

16 L. In a title IV-D case, if the court orders the noncustodial
17 parent to obtain medical insurance, the court shall also set an
18 alternative cash medical support order to be paid by that parent if the
19 child is not covered under an insurance plan within ninety days after
20 entry of the order or if the child is no longer covered by insurance. The
21 court shall not order the custodial parent to pay cash medical support.

22 M. In title IV-D cases, the superior court shall accept for filing
23 any documents that are received through electronic transmission if the
24 electronically reproduced document states that the copy used for the
25 electronic transmission was certified before it was electronically
26 transmitted.

27 N. The court shall presume, in the absence of contrary testimony,
28 that a parent is capable of full-time employment at least at the
29 applicable state or federal adult minimum wage, whichever is higher. This
30 presumption does not apply to noncustodial parents who are under eighteen
31 years of age and who are attending high school.

32 O. An order for support shall provide for an assignment pursuant to
33 sections 25-504 and 25-323.

34 P. Each licensing board or agency that issues professional,
35 recreational or occupational licenses or certificates shall record on the
36 application the social security number of the applicant and shall enter
37 this information in its database in order to aid the department of
38 economic security in locating parents or their assets or to enforce child
39 support orders. This subsection does not apply to a license that is
40 issued pursuant to title 17 and that is not issued by an automated drawing
41 system. If a licensing board or agency allows an applicant to use a
42 number other than the social security number on the face of the license or
43 certificate while the licensing board or agency keeps the social security
44 number on file, the licensing board or agency shall advise an applicant of
45 this fact.

46 Q. IF THE COURT ENTERS AN ORDER FOR CHILD SUPPORT FOR MEDICAL AND
47 PREGNANCY-RELATED EXPENSES OF THE MOTHER, THE AMOUNT OF CHILD SUPPORT

1 ORDERED FOR THE SUPPORT OF A PREBORN CHILD SHALL NOT EXCEED THE DIRECT
2 MEDICAL AND PREGNANCY-RELATED EXPENSES OF THE MOTHER OF THE PREBORN CHILD.
3 PREGNANCY-RELATED EXPENSES SHALL NOT INCLUDE ANY EXPENSES RELATED TO AN
4 ~~[ELECTIVE]~~ ABORTION. THE AMOUNT OF CHILD SUPPORT ORDERED PURSUANT TO THIS
5 SUBSECTION SHALL BE CALCULATED FROM THE DATE OF A POSITIVE PREGNANCY TEST
6 THAT IS CONFIRMED BY A LICENSED HEALTH CARE PROFESSIONAL.

7 ~~R.~~ R. The factors prescribed pursuant to subsection D of this
8 section are stated for direction to the supreme court. Except pursuant to
9 subsection E of this section and sections 25-501 and 25-809, the superior
10 court shall not consider the factors when making child support orders,
11 independent of the child support guidelines.

12 ~~R.~~ S. For the purposes of this section:

13 1. "Accessible" means that insurance is available in the geographic
14 region where the child resides.

15 2. "Child support guidelines" means the child support guidelines
16 that are adopted by the state supreme court pursuant to 42 United States
17 Code sections 651 through 669B.

18 3. "Date of separation" means the date the married parents ceased
19 to cohabit.

20 4. "PREBORN CHILD" MEANS THE OFFSPRING OF HUMAN BEINGS FROM
21 CONCEPTION UNTIL BIRTH.

22 ~~4.~~ 5. "Reasonable cost" means an amount that does not exceed the
23 higher of five ~~percent~~ PERCENT of the gross income of the obligated
24 parent or an income-based numeric standard that is prescribed in the child
25 support guidelines.

26 ~~5.~~ 6. "Support" has the same meaning prescribed in section 25-500.

27 ~~6.~~ 7. "Support payments" means the amount of money ordered by the
28 court to be paid for the support of the minor child or children OR A
29 PREBORN CHILD.

30 <<Sec. 2. Title 25, chapter 11, article 1, Arizona Revised
31 Statutes, is amended by adding section 25-1502, to read:

32 25-1502. Genetic testing; in utero; after birth

33 [IN ANY PROCEEDING BROUGHT PURSUANT TO THIS TITLE IN WHICH A MOTHER
34 IS REQUIRED OR ORDERED TO UNDERGO GENETIC TESTING, THE MOTHER MAY ELECT TO
35 UNDERGO THE GENETIC TESTING DURING THE PREGNANCY OR AFTER THE BIRTH OF THE
36 CHILD.]>>

37 Enroll and engross to conform

38 Amend title to conform

LUPE DIAZ

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